

PARTY WITHOUT ATTORNEY OR ATTORNEY NAME: KOSTIANTYN MARS FIRM NAME: STREET ADDRESS: PO BOX 8081 CITY: SAN JOSE TELEPHONE NO.: (408) 518-008 E-MAIL ADDRESS: CONSTANTINE.MARS@GMAIL.COM ATTORNEY FOR (name): STATE BAR NUMBER: STATE: CA ZIP CODE: 95155 FAX NO.: SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA STREET ADDRESS: 201 N FIRST STREET MAILING ADDRESS: 191 N FIRST STREET CITY AND ZIP CODE: SAN JOSE, CA 95113 BRANCH NAME: FAMILY JUSTICE CENTER	FOR COURT USE ONLY FILED FEB 20 2024 Clerk of the Court Superior Court of CA County of Santa Clara BY <u>J. RARAS</u> DEPUTY												
PETITIONER: KOSTIANTYN MARS RESPONDENT: HANNA MARS OTHER PARENT/PARTY:	CASE NUMBER: 22FL003144												
<table style="width: 100%;"> <tr> <td style="width: 33%;">REQUEST FOR ORDER</td> <td style="width: 33%;">☐ CHANGE</td> <td style="width: 33%;">☐ TEMPORARY EMERGENCY ORDERS</td> </tr> <tr> <td>☐ Child Custody</td> <td>☐ Visitation (Parenting Time)</td> <td>☐ Spousal or Partner Support</td> </tr> <tr> <td>☐ Child Support</td> <td>☐ Domestic Violence Order</td> <td>☐ Attorney's Fees and Costs</td> </tr> <tr> <td>☐ Property Control</td> <td colspan="2">☒ Other (specify): CHANGE OF VENUE</td> </tr> </table>		REQUEST FOR ORDER	☐ CHANGE	☐ TEMPORARY EMERGENCY ORDERS	☐ Child Custody	☐ Visitation (Parenting Time)	☐ Spousal or Partner Support	☐ Child Support	☐ Domestic Violence Order	☐ Attorney's Fees and Costs	☐ Property Control	☒ Other (specify): CHANGE OF VENUE	
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NOTICE OF HEARING

1. TO (name(s)): **HANNA MARS**
☐ Petitioner ☒ Respondent ☐ Other Parent/Party ☐ Other (specify):

2. A COURT HEARING WILL BE HELD AS FOLLOWS:

a. Date: <u>03/21/2024</u>	Time: <u>1:30 p.m.</u>	* Dept.: <u>79</u>	Room.: ☐
b. Address of court ☒ same as noted above ☐ other (specify):			

3. **WARNING to the person served with the Request for Order:** The court may make the requested orders without you if you do not file a *Responsive Declaration to Request for Order* (form FL-320), serve a copy on the other parties at least nine court days before the hearing (unless the court has ordered a shorter period of time), and appear at the hearing. (See form FL-320-INFO for more information.)

(Forms FL-300-INFO and DV-400-INFO provide information about completing this form.)

COURT ORDER

(FOR COURT USE ONLY)

It is ordered that:

4. ☐ Time ☐ for service ☐ until the hearing is shortened. Service must be on or before (date):
5. ☐ A *Responsive Declaration to Request for Order* (form FL-320) must be served on or before (date):
6. ☐ The parties must attend an appointment for child custody mediation or child custody recommending counseling as follows (specify date, time, and location):
7. ☐ The orders in *Temporary Emergency (Ex Parte) Orders* (form FL-305) apply to this proceeding and must be personally served with all documents filed with this *Request for Order*.
8. ☐ Other (specify):

Date:

JUDICIAL OFFICER

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Note: Place a mark ☐ in front of the box that applies to your case or to your request. If you need more space, mark the box for “Attachment.” For example, mark “Attachment 2a” to indicate that the list of children's names and birth dates continues on a paper attached to this form. Then, on a sheet of paper, list each attachment number followed by your request. At the top of the paper, write your name, case number, and “FL-300” as a title. (You may use *Attached Declaration* ([form MC-031](#)) for this purpose.)

- FL-300 [Rev. July 1, 2016] **REQUEST FOR ORDER** Page 2 of 4

PETITIONER: RESPONDENT: OTHER PARENT/PARTY:	CASE NUMBER:
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3. ☐ CHILD SUPPORT

(Note: An earnings assignment may be issued. See *Income Withholding for Support* ([form FL-195](#)))

a. I request that the court order child support as follows:

Child's name and age

☐

I request support for each child Monthly amount (\$) requested
based on the child support guideline. (if not by guideline)

b. ☐ I want to change a current court order for child support filed on (date):

☐

[Attachment 3a.](#)

The court ordered child support as follows (specify):

c. I have completed and filed with this *Request for Order* a current *Income and Expense Declaration* ([form FL-150](#)) or I filed a current *Financial Statement (Simplified)* ([form FL-155](#)) because I meet the requirements to file form FL-155.

d. The court should make or change the support orders because (specify):

☐

[Attachment 3d.](#)

4. ☐ SPOUSAL OR DOMESTIC PARTNER SUPPORT

(Note: An *Earnings Assignment Order For Spousal or Partner Support* ([form FL-435](#)) may be issued.)

a. ☐ Amount requested (monthly): \$

b. ☐ I want the court to ☐ change ☐ end the current support order filed on (date):

The court ordered \$ per month for support.

c. ☐ This request is to modify (change) spousal or partner support after entry of a judgment.

I have completed and attached *Spousal or Partner Support Declaration Attachment* ([form FL-157](#)) or a declaration that addresses the same factors covered in form FL-157.

d. I have completed and filed a current *Income and Expense Declaration* ([form FL-150](#)) in support of my request.

e. The court should make, change, or end the support orders because (specify):

☐

[Attachment 4e.](#)

5. ☐ PROPERTY CONTROL

☐

I request temporary emergency orders

a. The ☐ petitioner ☐ respondent ☐ other parent/party be given exclusive temporary use, possession, and control of the following property that we ☐ own or are buying ☐ lease or rent (specify):

b. The ☐ petitioner ☐ respondent ☐ other parent/party be ordered to make the following payments on debts and liens coming due while the order is in effect:

Pay to: _____ For: _____ Amount: \$ _____ Due date: _____

Pay to: _____ For: _____ Amount: \$ _____ Due date: _____

Pay to: _____ For: _____ Amount: \$ _____ Due date: _____

Pay to: _____ For: _____ Amount: \$ _____ Due date: _____

c. ☐ This is a change from the current order for property control filed on (date):

d. Specify in [Attachment 5d](#) the reasons why the court should make or change the property control orders.

PETITIONER: RESPONDENT: OTHER PARENT/PARTY:	CASE NUMBER:
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6. ☐ ATTORNEY'S FEES AND COSTS

I request attorney's fees and costs, which total (specify amount): \$

. I filed the following to support my request:

- a. A current *Income and Expense Declaration* ([form FL-150](#)).
- b. A *Request for Attorney's Fees and Costs Attachment* ([form FL-319](#)) or a declaration that addresses the factors covered in that form.
- c. A *Supporting Declaration for Attorney's Fees and Costs Attachment* ([form FL-158](#)) or a declaration that addresses the factors covered in that form.

7. ☐ DOMESTIC VIOLENCE ORDER

- Do not use this form to ask for domestic violence restraining orders! Read [form DV-505-INFO](#), *How Do I Ask for a Temporary Restraining Order*, for forms and information you need to ask for domestic violence restraining orders.
- Read [form DV-400-INFO](#), *How to Change or End a Domestic Violence Restraining Order* for more information.

- a. The *Restraining Order After Hearing* (form DV-130) was filed on (date):
- b. I request that the court ☐ change ☐ end the personal conduct, stay-away, move-out orders, or other protective orders made in *Restraining Order After Hearing* (form DV-130). (If you want to change the orders, complete 7c.)
- c. ☐ I request that the court make the following changes to the restraining orders (specify): ☐ [Attachment 7c.](#)
- d. I want the court to change or end the orders because (specify): ☐ [Attachment 7d.](#)

8. ☒ OTHER ORDERS REQUESTED (specify):☐ [Attachment 8.](#)

- 1. CHANGE OF VENUE
- 2. IMMEDIATE RESIGNATION OF BRIBED JUDGE LOWNY FROM SUPERIOR COURT
- 3. STAY ON ALL ORDERS OF BRIBED JUDGE LOWNY UNTIL FINAL JUDGMENT
- 4. TRANSFER CASE TO SUPERVISING JUDGE BROOKE A. BLECHER, DEPT 72, UNTIL CHANGE OF VENUE

9. ☐ TIME FOR SERVICE / TIME UNTIL HEARING I urgently need:

- a. ☐ To serve the *Request for Order* no less than (number): court days before the hearing.
- b. ☐ The hearing date and service of the the *Request for Order* to be sooner.
- c. I need the order because (specify): ☐ [Attachment 9c.](#)

10. ☒ FACTS TO SUPPORT the orders I request are listed below. The facts that I write in support and attach to this request cannot be longer than 10 pages, unless the court gives me permission.☐ [Attachment 10.](#)

MOTION FOR CHANGE OF VENUE, AND COVER LETTER ATTACHED

I declare under penalty of perjury under the laws of the State of California that the information provided in this form and all attachments is true and correct.

Date: 02/12/2024

KOSTIANTYN MARS

(TYPE OR PRINT NAME)

(SIGNATURE OF APPLICANT)

**Requests for Accommodations**

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the proceeding. Contact the clerk's office or go to www.courts.ca.gov/forms for *Request for Accommodations by Persons With Disabilities and Response* ([form MC-410](#)). (Civ. Code, § 54.8.)

1 KOSTIANTYN MARS
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2 SAN JOSE, CA 95155
(408) 518-0088
3 CONSTANTINE.MARS@GMAIL.COM

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SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA

7 KOSTIANTYN MARS

Petitioner,

vs.

10 HANNA MARS,

Respondent.

) [Hon. Beth McGowen,
) Presiding Judge of Superior Court of California]

) [Dept. 72 - Hon. Brooke A. Blecher,
) Supervising Judge of Superior Court of California]

) Case No.: 22FL003144

) **NOTICE OF MOTION AND MOTION FOR**
) **CHANGE OF VENUE;**
) **MEMORANDUM OF POINTS AND**
) **AUTHORITIES;**
) **DECLARATION OF PETITIONER**

) **DATE: 3/14/2024**

) **TIME: 1:30 PM**

) **DEPT: 72**

) **JUDGE: HONORABLE BROOKE A. BLECHER**

17 To Honorable Court and Respondent through her attorney of record:

18 Please take notice that on 03/14/2024 at 1:30 PM or as soon as before or thereafter this matter
19 can be heard in Department 72, of the above-entitled Court, Petitioner, Kostiantyn Mars, will move
20 the Court to order that venue of the above-entitled case be transferred to the Superior Court of
21 California, County of San Francisco pursuant to Code of Civil Procedure sections 395 and 396, due
22 to the fact that Superior Court of California in County of Santa Clara had lost all credibility, after
23 gruesome experience with three bribed judges, Lowney, Flint and Towery during about one single
24 year, all three suspected of bribery, two of them (Flint and Towery) prematurely disqualified from
25 Superior Court during the first year of the case, and third one, Lowney, is currently under
26 investigation for suspect of bribery, abuse of judicial power and severe judicial misconduct, and is
27 requested to be disqualified after the very first month of his assignment in Department 79.
28

1 Therefore above-entitled Court had lost all credibility because of extremely high level of
2 corruption and bribery, and does not have subject matter jurisdiction.

3 Petitioner acknowledges the fact that the Court's credibility could be irreversibly destroyed by
4 unethical attorney Nancy L Roberts (license No.: #187211), who was requested to be disqualified
5 THREE times, and two of those times was protected by bribed judges of the Court.

6 Nevertheless, the fact that corrupted judges of the Court are so cheap that unethical attorney
7 Nancy L Roberts can bribe them in packs, leading to ruining of their corrupted judicial career, on
8 the case of international child abduction, where massive amount of evidence and witness statements
9 clearly confirm that Nancy's client abducted minor child and with direct threats to make
10 international child abduction through bribery and fraud, and massive fraud schema of international
11 child abduction, facilitated by Nancy L Roberts through usage of bribed judges, may lead attention
12 of federal authorities and international mass media to uncontrollable corruption in the Superior
13 Court of Santa Clara.

14 Those facts were brought to attention to the Court, but were ignored by bribed judges Flint and
15 Lowney.

16 Petitioner further moves the Court for an order that case 22FL003144 to be transferred to the
17 Superior Court of California, County of San Francisco, and Respondent pays Petitioner their costs
18 and transfer fees pursuant sections 396, 399, 271 of the Code of Civil Procedure, taking into
19 account that Respondent and her attorney Nancy L Roberts are suspected of bribing all three
20 corrupted judges: Lowney, Flint and Towery, which caused unnecessary burden of removal of
21 bribed judges from Superior Court of California, financial and reputational damages to Petitioner
22 and to corrupted judges, terminated from Superior Court, and damages to Court reputation.

23 The Motion will be based on this notice, the attached memorandum of points and authorities, the
24 attached Declaration of Petitioner and Exhibits attached thereto, the records and files for this action,
25 and the oral and documentary evidence which may be introduced at the hearing.

26 Respectfully submitted,

28 DATED: February 12, 2024


KOSTIANTYN MARS
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1 MEMORANDUM OF POINTS AND AUTHORITIES

2 I. STATEMENT OF FACTS

3 It is well known fact that corrupted judge Lowney of Department 79 is suspected of bribery, and
4 made extremely harmful rulings solely in favor of Respondent and her unethical attorney Nancy L
5 Roberts, completely ignoring massive amount of evidence and witness statements. It is well known
6 that on 02/07/2024 Stephen P. Lowney falsified court records, and made extremely prejudiced,
7 intentionally harmful ruling unreasonably and against factual and legal basis of the case ordering
8 Petitioner to abandon his son Max Mars, give up passport and all documents of his son, and to
9 allow international child abduction of Max Mars outside of the United States, exactly following
10 massive fraud schema of international child abduction, facilitated by unethical attorney Nancy L
11 Roberts with involvement of other two bribed judges, Flint and Towery.

12 It is well known that both corrupted judges Flint and Towery were disqualified and resigned
13 from Superior Court few years prior to their official end of term, both with involvement of Judicial
14 Commission and Presiding Judge(s).

15 It is also well known that corrupted judge Lowney unreasonably denied Motion to Disqualify
16 opposing counsel Nancy L Roberts, completely ignoring massive amount of evidence of unethical
17 conduct of Nancy L Roberts, violation of professional and ethical standards.

18 It is also well known that corrupted judge Lowney denied in one single hearing 02/07/2024
19 whole bunch (about 5) motions to reconsider intentionally harmful orders of previous bribed judge,
20 Andrea E. Flint, massively manipulated court records and calendar, and prohibited any kind of
21 documentation of that hearing – including court reporter, media coverage, audio and video
22 recordings, ADA accommodations and even Statement of Decision. Therefore intentions of corrupted
23 judge Lowney to abuse judicial power and avoid justice by removing all evidence, are obvious.

24 It is also well known that Verified Written Statement of Disqualification of Hon. Stephen P.
25 Lowney is brought to attention of the Court, Presiding Judge Honorable Beth McGowen and
26 Supervising Judge Brooke A. Blecher in February 2024, after the first month of Lowney's
27 assignment in Department 79.

1 It is also well known that TWO previous corrupted judges were terminated from Superior Court.

2 Due to gruesome experience with THREE corrupted judges, suspected of bribery, documented
3 history of massive falsifications of court records, manipulations of court proceedings and calendar,
4 lies of judges in the courtroom, which completely destroyed credibility of the Court,

5
6 **II. CONCLUSION**
7

8 Petitioner requests that the Court order that venue for the above-entitled case be transferred to
9 the Superior Court of California, County of San Francisco, and further that Respondent pays
10 Petitioner any costs and transfer fees related to this change of venue.

11
12 Respectfully submitted,

13
14 DATED: February 12, 2024

15 
16 _____
17 KOSTIANTYN MARS
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